

Form 60A.13C

20

No.

Supreme Court of Nova Scotia
(Family Division)

Between: [copy standard heading]

[name]

Applicant

and

[name]

Respondent

Notice of Application Regarding Missed Conference and Notice of Hearing

To: [name each respondent entitled to notice]

Motion for review of conferencing order

[*Minister of Community Services or Mi'kmaw Family and Children's Services*] , the applicant in this proceeding, moves for a review of the order for conferencing made by the court on the [date] , 20 , as a conference was not held within thirty days as required by [section 40B(1) of the Children and Family Services Act/sixty days as required by section 40C(1) of the Children and Family Services Act] .

Time and place hearing motion

The motion is to be heard by a judge at a [prehearing conference/disposition hearing] to be held on [date] , 20 at [a.m./p.m.] in the Courthouse, [insert address] , Nova Scotia.

Evidence

The evidence in support of the motion is as follows:

- 1 affidavit of [name] sworn on [date] , 20 and filed with this notice.
- 2 affidavit of [name] sworn on [date] , 20 already filed in this proceeding.
- 3 affidavit of [name] to be sworn and filed before the deadline, and attached is a will say statement.

A copy of each affidavit referred to in paragraphs 1 and 2 above is to be delivered to you with the notice.

Possible order against you

You may attend the hearing of the motion, and state your position on whether the proposed order should be made. If you do not attend, the judge may grant an order without further notice to you.

Counsel

You may retain and instruct counsel to represent you at the hearing. If you are unable to afford a lawyer, a lawyer may be available through the local Legal Aid office. If you wish to be represented by a lawyer, you should contact a lawyer as soon as possible.

Signature

Signed [date] , 20

Signature

Print name: